

-

File No.: EXP202303013

RESOLUTION FOR TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 20, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against VODAFONE ESPAÑA, S.A.U. (hereinafter, the respondent), through the Agreement that is transcribed:

<<

File No.: EXP202303013

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On January 18, 2023, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the respondent).

The reasons on which the complaint is based are as follows:

The complainant states that they are receiving advertising calls and SMS messages as a result of the telecommunications operator in question, with whom they have no commercial relationship, having registered their mobile phone number with a third party.

They indicate that they communicated this to the respondent so that they would proceed to delete their phone number, but continue to receive calls.

They provide details of the phone numbers from which they receive calls, the dates and times of the same; and the complaint made to the Galician Institute of Consumer Affairs.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on March 7, 2023, the aforementioned complaint was forwarded to the respondent, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 13, 2023, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On April 18, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

- The complainant provides a copy of the official complaint filed with the Galician Institute of Consumer Affairs and Competition, in which they claim that the mobile line ***TELEFONO.1, of which they are the owner, has been assigned by VODAFONE to a third party and requests that this ownership be canceled. The complaint is dated November 12, 2022, and is addressed to VODAFONE ESPAÑA, stamped by the establishment CLIMENT COMUNICACIONES, S.L. (VODAFONE Store).

- On August 7, 2023, it was verified by the Data Inspection that the mobile line number ***TELEFONO.1 was assigned to the operator MOVISTAR.

- On May 22 and August 8, 2023, the Data Inspection requested information and documentation from the respondent regarding the claimed facts. From the responses received to these requests, the

representative of the respondent entity states the following:

- o From the documentation provided by VODAFONE, it is evident that the line ***TELEFONO.1 has been assigned to third-party clients different from the complainant with activation and deactivation dates of 10/19/2022-11/15/2022, 01/17/2023-01/18/2023, and 01/18/2023-01/19/2023 respectively.
- o The representative of VODAFONE states that, after conducting the appropriate checks in VODAFONE's internal systems, they have verified that the line in question, ***TELEFONO.1, was previously owned by VODAFONE and that it was ported to another operator. When a line is ported, Vodafone blocks that number to prevent it from being assigned to another VODAFONE customer. However, in this case, a failure occurred during that procedure, preventing the information regarding the portability of the line ***TELEFONO.1 from being correctly reflected in VODAFONE's internal systems, which should have...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/11

having identified the ported line as blocked. This resulted in Vodafone continuing to identify this line as available, and subsequently, it could be assigned to other customers.

o

Consequently, when the line ***TELEFONO.1 received communications from Vodafone, it did so as the new customer to whom it had been assigned, not on behalf of the claimant. They state that, currently, the error in Vodafone's internal systems has been resolved, so incidents on the line ***TELEFONO.1 should not occur again in the future.

o

They state that in order to prevent incidents like these from occurring, they have implemented improvements in Vodafone's internal system to ensure that lines that are ported from their entity to another operator are blocked. This allows the line not to be assigned to any other customer once the portability has taken place. Furthermore, in order to guarantee the proper functioning of the system, periodic checks are conducted to verify that the processing of such management actions, the portabilities, is carried out correctly.

FIFTH: According to the report collected from the AXESOR tool, the entity VODAFONE ESPAÑA, S.A.U. is a large company established in 1994, with sales exceeding €50,000,000.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data is considered lawful, indicating the following:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural

person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child. The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities.”

III

In the present case, the claimant reports the following facts:

The line ***TELEFONO.1, of which the claimant states he is the owner, has been assigned by VODAFONE to third-party customers different from the claimant with activation and deactivation dates of 19/10/2022-15/11/2022, 17/1/2023-18/1/2023, and 18/1/2023-19/1/2023 respectively.

On the part of VODAFONE, they have verified that the line in question, ***TELEFONO.1, was assigned to them in the past, but it was ported to another operator, resulting in a failure during the portability, preventing the line from being blocked. This caused VODAFONE to continue identifying this line as available, and subsequently, it could be assigned to other customers.

The claimant informed VODAFONE that his line had been assigned to a third party and requested rectification on November 12, 2022, through a complaint filed via the official complaint form of the Galician Institute of Consumer, addressed to VODAFONE ESPAÑA and stamped by the establishment CLIMENT COMUNICACIONES, S.L. (VODAFONE Store). VODAFONE canceled the assignment of the line to the third customer on November 15, 2022; however, it reassigned the line to another third customer on January 17, 2023.

5/11

Nevertheless, in accordance with the evidence available at this moment regarding the initiation of the sanctioning procedure, and without prejudice to the results of the instruction, it is considered that the respondent has been processing personal data without legitimate grounds for doing so.

In light of this, it is considered that the facts presented violate the provisions established in Article 6 of the GDPR, as indicated in legal basis III, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the statute of limitations for the infringements, the infringement mentioned in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“According to what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year statute of limitations, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

IV

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case,

effective, proportionate, and dissuasive.”

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;
- j) adherence to codes of conduct under Article 40 or to approved certification mechanisms under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

Regarding paragraph k) of Article 83.2 of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/11

- f) The impact on the rights of minors.
- g) To appoint, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In accordance with the transcribed provisions, for the purpose of determining the amount of the fine to be imposed in this case on the respondent as responsible for an infringement classified under Article 83.5.a) of the GDPR, the following aggravating factors are considered concurrent:

- Severity of the facts, as the activity of the entity being claimed involves a high volume of processing of personal data, according to Article 83.2 a) GDPR
- The connection of the infringer's activity with the processing of personal data (Article 76 b) LOPDGDD)

It is appropriate to graduate the sanction to be imposed on the respondent and set it at the amount of

€100,000 in accordance with Article 58.2 of the GDPR.

V

If the infringement is confirmed, it could be agreed to impose on the controller the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with a possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against VODAFONE ESPAÑA, S.A.U. with NIF A80907397, in accordance with the provisions of Article 58.2.i) of the GDPR, for the alleged infringement of Article 6 of the GDPR, classified under Article 83.5.a) of the GDPR.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/11

SECOND: TO APPOINT R.R.R. as instructor and S.S.S. as secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and the documentation submitted, as well as the documents obtained and generated by the General Sub-Directorate of Data Inspection in the actions carried out prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPA-CAP, hereinafter), the sanction that may correspond would be €100,000, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to VODAFONE ESPAÑA, S.A.U. with NIF A80907397, granting a hearing period of ten working days for it to submit allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as provided in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement, which will entail a reduction of 20% of the sanction to be imposed in this procedure. With the application of this reduction, the sanction would be set at €80,000, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €80,000, and its payment will imply the termination of the procedure with the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary

payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at [Insert the corresponding text of €60,000].

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
9/11

In any case, the effectiveness of either of the two reductions mentioned will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of either of the amounts indicated above, 80,000 or 60,000 euros, you must make the payment by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the bank CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The sanctioning procedure will have a maximum duration of twelve months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

948-050822

Mar España Martí

Director of the Spanish Agency for Data Protection

>>

SECOND: On December 19, 2023, the respondent has proceeded to pay the sanction in the amount of 80,000 euros using one of the two reductions provided for in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been established.

THIRD: The payment made entails the renunciation of any action or administrative appeal against the sanction, in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

10/11

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202303013, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the Audiencia Nacional, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

937-17112023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es